
THE DYNAMICS OF A STALEMATE

Devanesan Nesiah

For negotiations to progress, for justice and security to be established, for normalcy to return, for the peace dividends to reach the populations most affected, several critical reforms need to be adopted. Some of these may require the retraction of steps unilaterally decided on purportedly in the interest of security. For example, the crippling restrictions on fishing in the seas off the North and East may need to be relaxed after negotiating arrangements for mutual security. Further, the bulk of the northern High Security Zone which covers vast tracts of once densely populated areas with fertile agricultural lands may need to be vacated to permit the resettlement of thousands of displaced families, after negotiating required security provisions. Similarly, Sinhala, Tamil and Muslim populations displaced from many parts of the North and East may need to be helped and encouraged to resettle in the lands they vacated or, even if they are reluctant to do so, to reclaim their property, after ensuring the safety of all concerned. A large, varied range of other essential reforms are also needed to be undertaken early but carefully and in consultation with the parties involved. Care and consultation are necessary to ensure that these essential reforms are speedily implemented but in such a manner as not to lead to disaster.

There are other questions that warrant even greater circumspection. Should the Sri Lankan Armed Forces totally vacate their presence in the North and East? Should the Sri Lankan Navy scale down its presence in the seas off the North and East? Should the LTTE disband its Navy (Sea Tigers)? Should the LTTE dismantle its administrative, policing and judicial structures and its control of the Kilinochchi and Mullaitivu districts and other areas now effectively under their charge? In the context of the MOU and continuing ceasefire, should the Sri Lankan Armed Forces and the LTTE sharply scale down their military capacity and levels of combat preparedness to pre-conflict norms? If either party is willing to take such steps unilaterally, would that strengthen the peace process? Or could it precipitate war?

Overall, the ceasefire declared by the LTTE in Dec. 2002, promptly reciprocated by the UNF government, and sealed by the MOU of Feb. 2003 has held. There have been many instances of breaches of the ceasefire and MOU by both parties, but none of these has led to either party repudiating the ceasefire or MOU. On the other hand, both sides appear to have retained virtually all of the military capacity they possessed in Dec. 2002; their military camps and areas under their control; their military cadres, augmented with fresh recruitment; their weaponry, supplemented with new purchases; their military intelligence gathering and morale boosting activities, etc. Is there a contradiction between the ceasefire and

MOU on the one hand, and sustained preparedness for war on the other?

To address this question we need to remind ourselves of the circumstances in which the ceasefire and MOU emerged. Would these have materialized if either side had (or even believed that it had) the capacity to win militarily? After seventeen years of a terrible war that had inflicted massive losses to combatants on both sides and, even more, to helpless civilians, would it have made sense for either party to renounce the war if achieving victory seemed possible? The answer, surely, is no. As in many such instances elsewhere, a critical factor, as in the Sri Lankan case, was a prolonged, mutually hurting military stalemate.

In a game of chess, it is possible to win, lose or draw without erratic play on either side. The superior skill of one player may be so overpowering as to secure a win, or may be adequate only to ensure a draw. Often in a drawn position (i.e. one in which neither party has the capacity to force a win without erratic play by the other), play could go on indefinitely till either party makes a fatal error or the two parties agree to a draw. A stalemate is a very special situation in which the two players are deadlocked with neither party having a move available to break that deadlock; no further play is possible and a draw is forced. But in conflict situations, unlike in chess, moves could be retracted and erratic steps could transform a stalemate position into a crisis point or a watershed with multiple possibilities. These could include progress to negotiations (hopefully leading to a solution to the crisis), or a regression (back to war); or the parties could remain deadlocked (e.g. as in Cyprus) in no win – no loss, no peace – no war positions.

Why did the two parties persist in terrible, mutually agonizing combat for 17 years? Because winning the war was, by far, each side's first preference. It appears that both sides have now set aside this option, not because it has become less desirable but because it has proved to be unattainable. What they are now engaged in, negotiating a settlement, is a difficult and risky venture – perhaps even more difficult and more risky than waging all out war, and less attractive in that whereas in a war the victor could expect to enjoy the spoils, in the case of a negotiated solution or a bloodless coup, those responsible for success are seldom the main beneficiaries. Frequently the outcome may be unpredictable and some of the key negotiators may even disappear from the scene during or after the negotiations, even if they had played a critical role in its success. There have been many instances, in many parts of the world, of this happening through assassination, or deposition, or marginalization for one reason or the other. Gandhi in India,

Mossadeq in Iran, Naguib in Egypt, Lumumba in the Congo, and Allende in Chile are a few of the numerous examples that could be cited. Thus prolonging the status quo undisturbed by a prolonged, low intensity conflict with or without inconclusive negotiations may be the second preference of the leadership. But this option too has proved to be unbearably costly to both parties in Sri Lanka. Abandoning war altogether and engaging in decisive negotiations may be only the third preference, eventually resorted to when the other options (a decisive win, and a prolonged low intensity conflict) have closed. This appears to be the situation now in Sri Lanka.

In instances in which a military stalemate is an essential precondition for successful negotiations, any unilateral dropping of defences by either side could dislodge the stalemate and be counter productive. It could be not only suicidal, but also the trigger for the resumption of war. Every step needs to be taken carefully and without disturbing the military stalemate. But, subject to this caution, many urgent initiatives are needed to quickly and substantially reduce the military build up and level of combat preparedness so as to sustain progress towards a just and lasting peace. ■

AFTER THE WINNING OF THE IRAQ WAR

Eric Hobsbawm

For those with a long memory and an understanding of the ambitions and history of previous empires—and their inevitable decline—the present behaviour of the United States is familiar and yet unprecedented. It may lead to the militarisation of the US, the destabilisation of the Middle East and the impoverishment, in every way, of the rest of the world.

THE present world situation is quite unprecedented. The great global empires that have been seen before, such as the Spanish in the 16th and 17th centuries, and notably the British in the 19th and 20th centuries, bear little comparison with what we see today in the United States empire. The present state of globalisation is unprecedented in its integration, its technology and its politics.

We live in a world so integrated, where ordinary operations are so geared to each other, that there are immediate global consequences to any interruption—SARS, for instance, which within days became a global phenomenon, starting from an unknown source somewhere in China. The disruption of the world transport system, international meetings and institutions, global markets, and even whole economies, happened with a speed unthinkable in any previous period.

Technology

There is the enormous power of a constantly revolutionised technology in economics and above all in military force. Technology is more decisive in military affairs than ever before. Political power on a global scale today requires the mastery of this technology, combined with an extremely large state. Previously the question of size was not relevant. Britain that ran the greatest empire of its day was, even by the standards of the 18th and 19th century, only a medium-sized state. In the 17th century, Holland, a state of the same order of size as Switzerland, could become a

global player. Today it would be inconceivable that any state, other than a relative giant—however rich and technologically advanced it was—could become a global power.

There is the complex nature of today's politics. Our era is still one of nation-states—the only aspect of globalisation in which globalisation does not work. But it is a peculiar kind of state wherein almost every one of the ordinary inhabitants plays an important role. In the past the decision-makers ran states with little reference to what the bulk of the population thought. And during the late 19th and early 20th century governments could rely on a mobilisation of their people which is, in retrospect, now quite unthinkable. Nevertheless, what the population think, or are prepared to do, is nowadays more directed for them than before.

A key novelty of the US imperial project is that all other great powers and empires knew that they were not the only ones, and none aimed at global domination. None believed themselves invulnerable, even if they believed themselves to be central to the world—as China did, or the Roman empire at its peak. Regional domination was the maximum danger envisaged by the system of international relations under which the world lived until the end of the cold war. A global reach, which became possible after 1492, should not be confused with global domination.

The British empire in the 19th century was the only one that really was global in a sense that it operated across the entire planet, and to that extent it is a possible precedent for the American empire. The Russians in the communist period dreamed of a world transformed, but they knew well, even at the peak of the power of the Soviet Union, that world domination was beyond them, and contrary to cold war rhetoric they never seriously tried such domination.

Bases

But the differences between today's US ambitions and those of Britain of a century and more ago are stark. The US is a physically vast country with one of the largest populations on the globe, still (unlike the European Union) growing due to almost unlimited immigration. There are differences in style. The British empire at its peak occupied and administered one quarter of the globe's surface⁽¹⁾. The US has never actually practised colonialism, except briefly during the international fashion for colonial imperialism at the end of the 19th century and the beginning of the 20th century. The US operated instead with dependent and satellite states, notably in the Western hemisphere in which it almost had no competitors. Unlike Britain, it developed a policy of armed intervention in these in the 20th century.

Because the decisive arm of the world empire was formerly the navy, the British empire took over strategically important maritime bases and staging-posts worldwide. This is why, from Gibraltar to St Helena to the Falklands Islands, the Union Jack flew and still flies. Outside the Pacific the US only began to need this kind of base after 1941, but they did it by agreement with what could then genuinely be called a coalition of the willing. Today the situation is different.

The US has become aware of the need directly to control a very large number of military bases, as well as indirectly to continue to control them.

There are important differences in the structure of the domestic state and its ideology. The British empire had a British, but not a universal, purpose, although naturally its propagandists also found more altruistic motives. So the abolition of the slave trade was used to justify British naval power, as human rights today are often used to justify US military power. On the other hand the US, like revolutionary France and revolutionary Russia, is a great power based on a universalist revolution—and therefore based on the belief that the rest of the world should follow its example, or even that it should help liberate the rest of the world. Few things are more dangerous than empires pursuing their own interest in the belief that they are doing humanity a favour.

The basic difference is that the British empire, although global (in some senses even more global than the US now, as it single-handedly controlled the oceans to an extent to which no country now controls the skies), was not aiming at global power or even military and political land power in regions like Europe and America. The empire pursued the basic interests of Britain, which were its economic interests, with as little interference as possible. It was always aware of the limitations of Britain's size and resources. After 1918 it was acutely aware of its imperial decline.

But the global empire of Britain, the first industrial nation, worked with the grain of the globalisation that the development of the British economy did so much to advance.

The British empire was a system of international trade in which, as industry developed in Britain, it essentially rested on the export of manufactures to less developed countries. In return, Britain became the major market for the world's primary products⁽²⁾. After it ceased to be the workshop of the world, it became the centre of the globe's financial system.

Not so the US economy. That rested on the protection of native industries, in a potentially gigantic market, against outside competition, and this remains a powerful element in US politics. When US industry became globally dominant, free trade suited it as it had suited the British. But one of the weaknesses of the 21st century US empire is that in the industrialised world of today the US economy is no longer as dominant as it was⁽³⁾. What the US imports in vast quantities are manufactures from the rest of the world, and against this the reaction of both business interests and voters remains protectionist. There is a contradiction between the ideology of a world dominated by US-controlled free trade, and the political interests of important elements inside the US who find themselves weakened by it.

Arms Trade

One of the few ways in which this weakness can be overcome is by the expansion of the arms trade. This is another difference between the British and US empires. Especially since the Second World War, there has been an extraordinary degree of constant armament in the US in a time of peace, with no precedent in modern history: it may be the reason for the dominance of what President Dwight Eisenhower called the "military industrial complex". For 40 years during the cold war both sides spoke and acted as though there was a war on, or about to break out. The British empire reached its zenith in the course of a century without major international wars, 1815-1914. Moreover, in spite of the evident disproportion between US and Soviet power, this impetus to the growth of the US arms industry has become much stronger, even before the cold war ended, and it has continued ever since.

The Cold War turned the US into the hegemon of the Western world. However, this was as the head of an alliance. There was no illusion about relative power. The power was in Washington and not anywhere else. In a way, Europe then recognised the logic of a US world empire, whereas today the US government is reacting to the fact that the US empire and its goals are no longer genuinely accepted. There is no coalition of the willing: in fact the present US policy is more unpopular than the policy of any other US government has ever been, and probably than that of any other great power has ever been.

The Americans led the Western alliance with a degree of courtesy traditional in international affairs, if only because the Europeans should be in the front line in the fight against the Soviet armies: but the alliance was permanently welded to the US by dependence on its military technology. The Americans remained consistently opposed to an independent military potential in Europe. The roots

of the long-standing friction between the Americans and the French since the days of De Gaulle lie in the French refusal to accept any alliance between states as eternal, and the insistence on maintaining an independent potential for producing hi-tech military equipment. However, the alliance was, for all its strains, a real coalition of the willing.

Effectively, the collapse of the Soviet Union left the US as the only superpower, which no other power could or wanted to challenge. The sudden emergence of an extraordinary, ruthless, antagonistic flaunting of US power is hard to understand, all the more so since it fits neither with long-tested imperial policies developed during the cold war, nor the interests of the US economy. The policies that have recently prevailed in Washington seem to all outsiders so mad that it is difficult to understand what is really intended.

Global Supremacy

But patently a public assertion of global supremacy by military force is what is in the minds of the people who are at present dominating, or at least half-dominating, the policy-making in Washington. Its purpose remains unclear.

Is it likely to be successful? The world is too complicated for any single state to dominate it. And with the exception of its military superiority in hi-tech weaponry, the US is relying on diminishing, or potentially diminishing, assets.

Its economy, though large, forms a diminishing share of the global economy. It is vulnerable in the short term as well as in the long term. Imagine that tomorrow the Organisation of Petroleum Exporting Countries decided to put all its bills in euros instead of in dollars.

Although the US retains some political advantages, it has thrown most of them out of the window in the past 18 months. There are the minor assets of American culture's domination of world culture, and of the English language. But the major asset for imperial projects at the moment is military. The US empire is beyond competition on the military side and it is likely to remain so for the foreseeable future. That does not mean that it will be absolutely decisive, just because it is decisive in localised wars. But for practical purposes there is nobody, not even the Chinese, within reach of the technology of the Americans. But here there will need to be some careful consideration on the limits of technological superiority.

Of course the Americans theoretically do not aim to occupy the whole world. What they aim to do is to go to war, to leave friendly governments behind them and go home again. This will not work. In military terms, the Iraq war was very successful. But, because it was purely military, it neglected the necessities of what to do if you occupy a country - running it, maintaining it, as the British

did in the classic colonial model of India. The model "democracy" that the Americans want to offer to the world in Iraq is a non-model and irrelevant for this purpose. The belief that the US does not need genuine allies among other states, or genuine popular support in the countries its military can now conquer (but not effectively administer) is fantasy.

The war in Iraq was an example of the frivolity of US decision-making. Iraq was a country that had been defeated by the Americans and refused to lie down: a country so weak it could be easily defeated again. It happened to have assets—oil—but the war was really an exercise in showing international power. The policy that the crazies in Washington are talking about, a complete re-formulation of the entire Middle East, makes no sense. If their aim is to overthrow the Saudi kingdom, what are they planning in its place? If they were serious about changing the Middle East we know the one thing they have to do is to lean on the Israelis. Bush's father was prepared to do this, but the present incumbent in the White House is not. Instead his administration has destroyed one of the two guaranteed secular governments in the Middle East, and dreams of moving against the other, Syria.

The emptiness of the policy is clear from the way the aims have been put forward in public relations terms. Phrases like "axis of evil", or "the road map" are not policy statements, but merely sound bites that accumulate their own policy potential. The overwhelming newspeak that has swamped the world in the past 18 months is an indication of the absence of real policy. Bush does not do policy, but a stage act.

Officials such as Richard Perle and Paul Wolfowitz talk like Rambo in public, as in private. All that counts is the overwhelming power of the US. In real terms they mean that the US can invade anybody small enough and where they can win quickly enough. This is not a policy. Nor will it work. The consequences of this for the US are going to be very dangerous. Domestically, the real danger for a country that aims at world control, essentially by military means, is the danger of militarisation. The danger of this has been seriously underestimated.

Instability

Internationally, the danger is the destabilising of the world. The Middle East is just one example of this destabilisation—far more unstable now than it was 10 years ago, or five years ago. US policy weakens all the alternative arrangements, formal and informal, for keeping order. In Europe it has wrecked the North Atlantic Treaty Organisation - not much of a loss; but trying to turn Nato into a world military police force for the US is a travesty. It has deliberately sabotaged the EU, and also systematically aims at ruining another of the great world achievements since 1945, prosperous democratic social welfare states. The widely perceived crisis over the credibility of the United Nations is less of a drama than it appears since the UN has never been able to do more than

operate marginally because of its total dependence on the Security Council, and the use of the US veto.

How is the world to confront—contain—the US? Some people, believing that they have not the power to confront the US, prefer to join it. More dangerous are those people who hate the ideology behind the Pentagon, but support the US project on the grounds that, in the course of its advance, it will eliminate some local and regional injustices. This may be called an imperialism of human rights. It has been encouraged by the failure of Europe in the Balkans in the 1990s. The division of opinion over the Iraq war showed there to be a minority of influential intellectuals, including Michael Ignatieff in the US and Bernard Kouchner in France, who were prepared to back US intervention because they believe it is necessary to have a force for ordering the world's ills.

There is a genuine case to be made that there are governments that are so bad that their disappearance will be a net gain for the world. But this can never justify the danger of creating a world power that is not interested in a world that it does not understand, but is capable of intervening decisively with armed force whenever anybody does anything that Washington does not like.

Against this background we can see the increasing pressure on the media - because in a world where public opinion is so important, it is also hugely manipulated⁽⁴⁾. Attempts were made in the Gulf war, 1990-91, to avoid the Vietnam situation by not letting the media near the action. But these did not work because there were media, for example CNN, actually in Baghdad, reporting things that did not fit the story Washington wanted told. This time, in the Iraq war, control again did not work, so the tendency will be to find yet more effective ways. These may take the form of direct control, maybe even the last resort of technological control, but the combination of governments and monopoly proprietors will be used to even greater effect than with Fox News⁽⁵⁾, or Silvio Berlusconi in Italy.

How long the present superiority of the Americans lasts is impossible to say. The only thing of which we are absolutely certain is that historically it will be a temporary phenomenon, as all these other empires have been. In the course of a lifetime we have seen the end of all the colonial empires, the end of the so-called Thousand Year Empire of the Germans, which lasted a mere 12 years, the end of the Soviet Union's dream of world revolution.

Empire's Future

There are internal reasons why the US empire may not last, the most immediate being that most Americans are not

interested in imperialism or in world domination in the sense of running the world. What they are interested in is what happens to them in the US. The weakness of the US economy is such that at some stage both the US government and electors will decide that it is much more important to concentrate on the economy than to carry on with foreign military adventures⁽⁶⁾. All the more so as these foreign military interventions will have to be largely paid for by the Americans themselves, which was not the case in the Gulf war, nor to a very great extent in the cold war.

Since 1997-98 we have been living in a crisis of the capitalist world economy. It is not going to collapse, but nevertheless it is unlikely that the US will carry on with ambitious foreign affairs when it has serious problems at home. Even by local business standards Bush does not have an adequate economic policy for the US. And Bush's existing international policy is not a particularly rational one for US imperial interests—and certainly not for the interests of US capitalism. Hence the divisions of opinion within the US government.

The key issue now is what will the Americans do next, and how will other countries react? Will some countries, like Britain - the only genuine member of the ruling coalition - go ahead and back anything the US plans? Their governments must indicate that there are limits to what the Americans can do with their power. The most positive contribution so far has been made by the Turks, simply by saying there are things they are not prepared to do, even though they know it would pay. But at the moment the major preoccupation is that of—if not containing—at any rate educating or re-educating the US. There was a time when the US empire recognised limitations, or at least the desirability of behaving as though it had limitations. This was largely because the US was afraid of somebody else - the Soviet Union. In the absence of this kind of fear, enlightened self-interest and education have to take over.

Notes

- (1) *The Age of Empire 1875-1914*, Weidenfeld and Nicolson, London, 1987.
- (2) Op cit.
- (3) Chalmers Johnson, *Blowback: The Costs and Consequences of American Empire*, Owl Books, 2001.
- (4) "France protests US media plot", *International Herald Tribune*, 16 May 2003.
- (5) Eric Alterman, "United States: making up the news", *Le Monde Diplomatique*, English language edition, March 2003.
- (6) "US unemployment hits an 8-year high", *International Herald Tribune*, 3 May 2003. ■

JULY 1983

In July 2001, President Chandrika Kumaratunga appointed the Presidential Truth Commission on Ethnic Violence (1981-1984). The Commission's report was published in September 2002. The following are excerpts of the Report, dealing with violence in July 1983.

Ten days of widespread of violence

107. From Monday 25th July, for ten days, widespread violence directed against the Tamils sent Tamil men, women and children nowhere to go except the refugee camps and the homes of kind Sinhala and Muslim neighbours. It is necessary to emphasise the difficulties of giving a complete picture of these events, firstly because no official records of any investigations are available; secondly, almost all reports were censored at that time from publication and thirdly most of the victims are still living outside the country – some in south India, most of the others in Western countries. We have restricted these records to those who made representations, almost all of which were verified by a competent team of Investigators appointed by the Commission and to the accounts of those who were able to give oral testimony before the Commission. We are in no position sitting as we do, nearly 19 years after these events of July 1983 to give even a reasonably complete picture of the events of 1983.

108. The violations of human rights directed against the Tamils were unquestionably the worst in Sri Lanka's modern history. Killings, tortures and harassment of unarmed Tamils went hand in glove with the more widespread destruction and damage to Tamil homes, businesses and industries. Over 75,000 Tamils in Colombo alone and nearly a 100,000 in all, were temporarily located in nearly 27 refugee camps. Refugees in large numbers were sent to the North by ships since the government had failed to stop the violence which raged over a period of 10 days.

109. The government acknowledged a death toll of nearly 350 in all, but Tamils claimed the number of deaths to be over a thousand. We have no basis to report on the number of deaths or the extent of damage to properties, with any degree of accuracy, for reasons referred to elsewhere in this Report.

110. Amongst the more prominent of the events of July 1983 were the killing of 51 Tamils in the North of 24th July by army personnel, the destruction of 175 Tamil houses, with one death and a dozen injured in Trincomalee on 25th July by Navy personnel, the killing of 35 Tamil prisoners by fellow prisoners at Welikada Jail Colombo on 25th July, followed by the killing of a further 18 Tamil prisoners at the same prison on 27th July. We have dealt with the killings inside the Welikada Jail elsewhere. (Vide paragraphs 152 onwards).

No appeal to stop violence

111. We have faulted the then government, in several places of this report for both acts of omissions and commissions, in the run up to

the events that resulted in the communal conflagration of July 1983. But more importantly, the government was guilty of gross negligence in failing to appeal to the people for restraint, peace and calm on July 25th, 26th and until the evening of July 27th. There was not a single leader of Cabinet rank to at least appeal to the law-breakers to stop violence apart from the government's failing to perform its fundamental obligations to protect the life and property of its citizens, even by recourse to force. There were witnesses who testified that this was due to the complicity of a section of the government in 'teaching the Tamils a lesson,' for the terrorism in the North.

112. The Government appears to have awakened to its responsibilities only on the evening of 27th July – the third consecutive day of extensive violence, perhaps following the call from the Prime Minister of India Mrs. Indira Gandhi to the Sri Lankan president, informing him that she thought it fit for her Foreign Minister Mr. Narasimha Rao to personally visit Sri Lanka the following day, to get a first hand assessment of troubles in Sri Lanka, which he did the following day.

President's speech with no apologies

113. The Cabinet which met the same night of 27th July 1983, was appraised of the Indian Foreign Minister's visit. It was only on the evening of 28th July 1983 that President Jayawardena made a televised speech to the Nation and appealed to the people 'to lay down their arms.' The 'Dawasa' a Sinhala daily of 29th July 1983, reported in banner headlines, the President's speech as follows:

"Sinhala Abhilashaya itu karami)
Rata dekata kadannata ida nothem) in Sinhala

"I will fulfil Sinhala aspirations.
I will not allow the country to be divided."

114. In the President's speech there was no message to the victims and no apologies. The President however acknowledged the Government's failure to solve the Tamil problem as promised in the 1977 manifesto of his party. In the President's Speech there was a message that the government understands the feelings of those who created trouble. Shortly thereafter on 20th July, Minister of State Mr. Anandatissa de Alwis blamed the JVP, the Communist Party and Dr. Wickremabahu Karunaratne's NSSP as being behind the violence, alleging the existence of 2nd Naxalite plot. But, there was no evidence of any left complicity in the events of July 1983 and the allegation was soon given up, without a single prosecution but only after the detention of large numbers of left leaders and activists.

115. If the Indian Prime Minister's despatch of her Foreign Minister to Colombo did give a surprise to the Sri Lanka government, it did not appear to have softened President Jayawardena's tough stand on the question of Tamil terrorism. Going by the text of the headline given by the 'Dawasa' daily, 'Sinhala aspirations will be fulfilled and the country will not be allowed to be divided' – "Sinhala Abhilashaya itu karami. – Rata Dekata kadannata ida nodemi" It would appear that four days of intense violence against innocent Tamils in the country did not bring about any remorse or regret upon the President to convey the apology of a nation to the plight of a section of its people, even as a large number of well meaning Sinhala neighbours protected the Tamils. Indeed, the Dawasa lead story of the President's televised address to the Nation itself would have given the trouble-makers encouragement and comfort that the head of the State was truly with them, if there had been any doubt about it. The attacks on Tamils continued for five more days, even after the Head of state addressed the Nation. Sad to record that the 'Dawasa' as well as most of the other media failed to douse the flames by reflecting on the horrors suffered by the innocent Tamils, in their hour of need. To give prominence to 'Sinhala aspirations' at a delicate time when the innocent women and children would have doubtless given the message that the media too was united with the political leadership and the hoodlums in 'teaching lessons.' We need add, only that, the nation was at its lowest ebb with a total breakdown of its moral responsibilities.

Separatism and the Sixth Amendment to the constitution

116. When the need of the hour was to appease the Tamil people and their leaders, notwithstanding the terrorism at that time of an insignificant number of Tamils, the parliament of President Jayawardena however moved swiftly on 4th August, 1983 to enact the Sixth Amendment to the Constitution after a single day's debate. The Sixth Amendment was to disavow Separatism, but the new result of the amendment was to compel the 16 TULF MPs to vacate their seats in Parliament and to throw the political leadership of the Tamils into the 'Tiger's lap.' The amendment further reinforced the belief that there was 'no remorse nor regret' for the events that had occurred.

The Report concludes with the following recommendations:

1. the President and the Prime Minister must give leadership to a new era of ethnic reconciliation and national unity;
2. the support and participation of the people of the country in the towns and the villages must be obtained and sustained by the country's leaders for the above purpose;
3. legislation similar to the South African, Promotion of National Unity and Reconciliation act No. 32 of 1995 be enacted to establish the legal framework for sustaining the process of ethnic reconciliation and to provide for the

elimination of all forms of racism and ethnic related discriminations:

4. the leadership, support and cooperation of religious leaders, the civil society, the media, the schools the police and the armed forces be ensured in the process of reconciliation and national unity;
5. the national unity and ethnic amity be fostered with due regard and recognition for pluralism and diversity;
6. the establishment of a just and fair governance that will eliminate all forms of racism and discrimination be promoted with perpetrators of discrimination losing the right to hold any public office for specified periods of time;
7. the media be made to recognize that sections from amongst them did contribute to the sustenance of ethnic misgivings and that they have a major responsibility to support and promote national unity and ethnic reconciliation with due regard for pluralism and diversity advertising on media which fail to promote ethnic reconciliation must be discouraged by the State as well as the private sector;
8. the government must pay; full compensation to the victims (or their dependents) on the basis of the Commission's Recommendations by publicly recognizing the trauma and sufferings the victims had to endure and as a warning to the perpetrators that economic destruction will be fully compensated; and strongly recommend that the government includes legal interest on the determined compensation as from 1983 till payment in full;
9. an Investigation Division of officers with police powers functioning entirely under the direction of the Human Rights Commission to apprehend and prosecute persons holding public office acting in violation of fundamental rights with particular reference to ethnic related discriminations be established with adequate legal powers;
10. the Human Rights Commission, in all cases on its own or upon complaints of unsatisfactory investigations by Police relating to ethnic violations or issues must take over and conduct investigations through its Investigations Division and ensure appropriate action;
11. the perpetrators of ethnic violence whether they be members of the public the police, the armed forces or the public service be prosecuted whenever any ethnic violence occurs in the future. The government must on the occurrence of any ethnic violence in the future forthwith appoint a high level National Committee reflecting as far as possible an equivalent number of persons of all ethnic groups and comprising the Attorney-General, Inspector General of

Police, Service Commanders, Secretaries to the relevant Ministries, Retired Judges of the Appellate and High Courts Chairman of Human Rights Commission, the Civil Society and the Media charged with the task of ensuring immediate action on all ethnic related violence. The national Committee must ensure that there is no cover-up of prosecutions;

12. Truth Commissions be appointed mandating to cover ethnic violence during the post-1984 period and to compensate all victims of ethnic violence and to achieve national unity and ethnic reconciliation. ■

COMMUNAL VIOLENCE JULY 1983

Statement by the Civil Rights Movement made in July 1983

The shock and horror of recent events when many Sri Lankans were hunted out, assaulted, killed, their homes and possessions destroyed, and places of business burnt, for no other reason than that they belonged to the Tamil community, permeate our lives today and will continue to do so for a long time to come. CRM expresses grief and concern at the suffering which so many have undergone. The breakdown of law and order on certain days when armed mobs roamed the city entering houses in search of Tamils, stopping cars and forcibly extracting petrol with which to set alight buildings, and commandeering vehicles, imperilled the safety and shook to the core citizens of all communities.

Background

An analysis of the recent disturbances and their background will take time; it will necessarily have to take into account the deterioration of relations between the Sinhala and Tamil ethnic groups to the point where it exploded in violence of a hitherto unprecedented degree. In recent years violence has been used by extremist elements on both sides. Such elements, among the Sinhalese, have, several times since 1958, resorted to generalised violence against the Tamil community resulting in great loss of life and property. Extremist elements among the Tamil people have, since the 1970s, resorted to various acts of violence primarily against the security forces and state institutions and property.

The present government has made certain attempts to meet the demands of the Tamil people. Tamil was declared a national language in the Constitution of 1978. Development Councils were established in 1980 with the avowed intention of devolving power in certain areas of activity to the district level. However, it was unfortunate that for one reason or another none of these measures were effectively implemented.

In this context, the hands of those who maintained that the aspirations of the Tamil people could be achieved only by violence were strengthened and acts of violence escalated. The state, then, armed itself with extraordinary powers in the form of the Prevention of Terrorism Act and set out to repress the violence by military force. Since the political and other causes for the growth of violence remained unsolved the efforts of the state to stamp it out were unsuccessful; in fact, it is probable that even more Tamil people

were embittered as a result of retaliation by some elements in the army and other security forces against the civilian population.

CRM has on numerous occasions drawn the attention of the government and the country to this deteriorating situation.

The continued existence of a violent separatist movement has contributed to an increasing state of irritation in the Sinhala community; encouraged by anti-Tamil racist propagandas which has been freely disseminated, it began to see the Tamil desire for self-determination as a threat to itself and to the country. The fact that violence has been used to meet criticism and political dissent in the country as a whole, including the Sinhala areas may well have encouraged the belief among certain sections of the population that the ethnic problem could be dealt with in a similar manner. However, CRM does not propose, at this stage, to embark on a comprehensive analysis of the reasons for this present outbreak of violence, which might to some extent explain but certainly not justify it.

CRM's Concerns

CRM will concentrate on some specific human rights issues – issues which relate directly to the responsibility of the state in protecting the basic rights of all persons within its territory without discrimination on the grounds of religion, race or political opinion.

(A) The massacre in the Welikada Prison

CRM is outraged at the massacre of the 53 Tamil prisoners and detainees who had been held at the Welikada Prison under the Prevention of Terrorism Act; in two separate incidents, the first on 25 July 1983, and the other two days later. It cannot be emphasised too strongly that the safety of persons in the custody of the State is a paramount responsibility of any government.

In the first incident, about 300 to 400 armed prisoners had allegedly broken out of their cells and attacked 35 Tamil detainees with iron bars and knives, killing them. The failure of the state in particular of the prison administration, to ensure safety of the prisoners and to quell the riot is aggravated by the second massacre in which 18